

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2813
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 23, chapter 6, article 9, Arizona Revised
3 Statutes, is amended by adding section 23-1062.04, to read:

4 23-1062.04. Pharmacy benefits; pharmacy management network;
5 notice; registration; fees; disputes; rules;
6 definition

7 A. AN EMPLOYER OR INSURER MAY ESTABLISH OR CONTRACT WITH A FORMAL
8 PHARMACY MANAGEMENT NETWORK TO PROVIDE NECESSARY MEDICATIONS TO INJURED
9 EMPLOYEES.

10 B. A FORMAL PHARMACY MANAGEMENT NETWORK MAY CONTRACT FOR
11 REIMBURSEMENT AMOUNTS THAT ARE DIFFERENT FROM THE FEE SCHEDULE ESTABLISHED
12 BY THE COMMISSION PURSUANT TO SECTION 23-908.

13 C. A FORMAL PHARMACY MANAGEMENT NETWORK MAY NOT REIMBURSE A
14 PHARMACY PROVIDER FOR AN AMOUNT THAT IS LESS THAN THE PHARMACY'S ACTUAL
15 COST OF THE MEDICATION ORDERED FOR THE INJURED EMPLOYEE PLUS THE
16 DISPENSING FEE ESTABLISHED BY THE COMMISSION.

17 D. FOR THE PURPOSES OF THIS SECTION, A PHARMACY SERVICES
18 ADMINISTRATIVE ORGANIZATION[, A PHARMACY PROCESSING AGENT, A THIRD-PARTY
19 BILLER OR ANY AGENT OF A PHARMACY OR DISPENSING PROVIDER] IS NOT
20 CONSIDERED AN EMPLOYER'S FORMAL PHARMACY MANAGEMENT NETWORK [~~OR AN AGENT~~
21 ~~OF A CONTRACT PHARMACY OR DISPENSING PROVIDER~~].

22 E. AN INFORMAL, VOLUNTARY PHARMACY MANAGEMENT NETWORK MAY BE USED
23 BY AN INJURED EMPLOYEE ON A VOLUNTARY BASIS AND IS NOT SUBJECT TO THIS
24 SECTION.

25 F. AN EMPLOYER OR INSURER THAT ESTABLISHES A FORMAL PHARMACY
26 MANAGEMENT NETWORK SHALL DO BOTH OF THE FOLLOWING:

27 1. WHEN AN EMPLOYER OR INSURER INITIALLY ESTABLISHES THE FORMAL
28 PHARMACY MANAGEMENT NETWORK, THE EMPLOYER OR THE INSURER SHALL NOTIFY

1 EMPLOYEES BY POSTING A NOTICE IN A PROMINENT LOCATION AT THE WORKPLACE OR
2 BY PROVIDING THE INFORMATION IN HARDCOPY OR BY ELECTRONIC MEANS THAT
3 EMPLOYEES MAY USE THE PHARMACY MANAGEMENT NETWORK AND HOW TO FILL A
4 PRESCRIPTION.

5 2. AT THE TIME OF A REPORTED INJURY, NOTIFY THE EMPLOYEE ON HOW TO
6 USE THE FORMAL PHARMACY MANAGEMENT NETWORK AND PROVIDE A LIST OF
7 PARTICIPATING NETWORK PHARMACIES AND PROVIDERS IN HARDCOPY OR BY
8 ELECTRONIC MEANS.

9 G. OUT-OF-NETWORK PRESCRIPTIONS FROM RETAIL PHARMACIES OR
10 DISPENSING PROVIDERS FOR MEDICATIONS THAT ARE REASONABLY REQUIRED FOR THE
11 PERIOD OF DISABILITY AND THAT ARE RELATED TO A COMPENSABLE CLAIM SHALL BE
12 REIMBURSED AT THE PHARMACY FEE SCHEDULE AMOUNT ESTABLISHED BY THE
13 COMMISSION UNTIL THE PAYOR OR FORMAL PHARMACY MANAGEMENT NETWORK PROVIDES
14 TO THE OUT-OF-NETWORK PHARMACY OR DISPENSING PROVIDER A NOTICE THAT
15 CONTAINS ALL OF THE FOLLOWING:

16 1. NOTICE THAT THE INJURED EMPLOYEE IS REQUIRED TO RECEIVE
17 PRESCRIPTIONS FROM A PHARMACY OR DISPENSING PROVIDER THAT PARTICIPATES IN
18 THE ESTABLISHED FORMAL PHARMACY MANAGEMENT NETWORK.

19 2. NOTICE THAT FUTURE MEDICATION REFILLS BY THE OUT-OF-NETWORK
20 PHARMACY OR DISPENSING PROVIDER WILL NOT BE REIMBURSED.

21 3. AN INVITATION TO THE PHARMACY OR DISPENSING PROVIDER TO JOIN THE
22 FORMAL PHARMACY MANAGEMENT NETWORK, IF DESIRED.

23 H. A FORMAL PHARMACY MANAGEMENT NETWORK SHALL ACCEPT AS PART OF THE
24 FORMAL PHARMACY MANAGEMENT NETWORK ANY PHARMACY OR DISPENSING PROVIDER
25 THAT IS LICENSED AND IN GOOD STANDING AND IS WILLING TO ABIDE BY THE
26 FORMAL PHARMACY MANAGEMENT NETWORK'S CONTRACT TERMS.

27 I. A FORMAL PHARMACY MANAGEMENT NETWORK SHALL REGISTER WITH THE
28 COMMISSION AND SUBMIT A FORM AS PRESCRIBED BY THE COMMISSION. A FORMAL
29 PHARMACY MANAGEMENT NETWORK SHALL PAY A REGISTRATION FEE IN AN AMOUNT
30 ESTABLISHED BY THE COMMISSION IN RULE.

31 J. A FORMAL PHARMACY MANAGEMENT NETWORK SHALL PROVIDE A TIMELY
32 PROCESS FOR PHARMACIES AND DISPENSING PROVIDERS TO DISPUTE A DENIAL OR
33 AMOUNT OF REIMBURSEMENT OF A PHARMACEUTICAL BILL.

34 K. A FORMAL PHARMACY MANAGEMENT NETWORK OR A CONTRACTED FORMAL
35 PHARMACY MANAGEMENT NETWORK ~~[SHALL]~~ [MAY] PERFORM AUDITS OF PHARMACIES AND
36 DISPENSING PROVIDERS.

37 L. A FORMAL PHARMACY MANAGEMENT NETWORK OR A CONTRACTED FORMAL
38 PHARMACY MANAGEMENT NETWORK MAY NOT CHARGE PHARMACIES OR DISPENSING
39 PROVIDERS FOR ANY DIRECT OR INDIRECT FEES ASSOCIATED WITH DISPENSING,
40 PROCESSING OR BILLING OF A PRESCRIPTION DRUG OR MEDICATION THAT IS
41 DISPENSED TO AN INJURED EMPLOYEE OR ANY FEE RELATED TO THE ENROLLMENT OR
42 ANNUAL REENROLLMENT OF THE PHARMACY IN THE NETWORK OR CREDENTIALING.

43 M. A PHARMACY PROCESSING AGENT OR THIRD-PARTY BILLER THAT ACCEPTS
44 THE ASSIGNMENT OF BILLS FROM A PHARMACY OR DISPENSING PROVIDER THAT IS
45 CONTRACTED WITH A FORMAL PHARMACY MANAGEMENT NETWORK MUST BE REIMBURSED AT
46 THE CONTRACTUAL AMOUNT AGREED TO BY THE ASSIGNING PHARMACY OR DISPENSING
47 PROVIDER.

1 N. IF A CLAIM IS DISPUTED FOR COMPENSABILITY, AN INJURED EMPLOYEE
2 IS NOT REQUIRED TO USE A PHARMACY OR DISPENSING PROVIDER IN THE FORMAL
3 PHARMACY MANAGEMENT NETWORK UNTIL THE CLAIM DISPUTE IS RESOLVED AND THE
4 FORMAL PHARMACY MANAGEMENT NETWORK PROVIDES NOTICE TO THE PARTIES THAT THE
5 CLAIM IS ACCEPTED. THE INJURED EMPLOYEE IS REQUIRED TO OBTAIN MEDICATIONS
6 THROUGH THE FORMAL PHARMACY MANAGEMENT NETWORK.

7 O. A FORMAL PHARMACY MANAGEMENT NETWORK THAT ~~[IS REGISTERED WITH~~
8 ~~THIS STATE AND]~~ ~~[ONLY]~~ PROVIDES ~~[WORKERS' COMPENSATION]~~ PHARMACY SERVICES
9 UNDER THIS SECTION IS EXEMPT FROM TITLE 20~~[, CHAPTER 25, ARTICLE 2]~~.

10 P. THE COMMISSION MAY ADOPT RULES NECESSARY TO IMPLEMENT THE
11 REQUIREMENTS OF THIS SECTION.

12 Q. FOR THE PURPOSES OF THIS SECTION~~[;]~~~~[:]~~
13 1.] EMPLOYER DOES NOT INCLUDE A SELF-INSURED EMPLOYER THAT ELECTS
14 TO PROVIDE MEDICAL CARE PURSUANT TO SECTION 23-1070.

15 [2. "PHARMACY MANAGEMENT NETWORK" MEANS ANY PERSON, ENTITY OR
16 AFFILIATED GROUP OF ENTITIES THAT DIRECTLY OR INDIRECTLY CONTRACT WITH,
17 ADMINISTER OR MANAGE A NETWORK OF PHARMACIES OR OTHER DISPENSING
18 PROVIDERS.]

19 Sec. 2. Effective date

20 Section 23-1062.04, Arizona Revised Statutes, as added by this act,
21 is effective from and after December 31, 2026.

22 Enroll and engross to conform

23 Amend title to conform

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